Harris County District Court

Cause No. 2025-CV-0028

Craig Gonzales, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 1, 2025
Plaintiff's counsel:	Bobby Berg, Morris & Miller LLP

Parties

Plaintiff Craig Gonzales is an individual residing in Texas who was the driver and sole occupant of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks coverage and benefits. Defendant may be served through its registered aegnt in accordance with the Texas Rules of Civil Procedure.

Facts

On August 21, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in Houston, Texas, traveling in the travel lane with the right of way. Another motorist, insured under a policy issued by Defendant, attempted to change lanes into the same space Plaintiff occupied without signaling, checking mirrors, or confirming the lane was clear. The adverse vehicle sideswiped Plaintiff's car, forcing contact along the driver's side and pushing Plaintiff's vehicle toward the shoulder. Plaintiff reported the loss to Defendant promptly and cooperated with its claim investigation. Defendant accepted liability for the at-fault driver's conduct but has failed to fully compensate Plaintiff for his losses.

Negligence

The at-fault driver owed a duty to other motorists to operate a vehicle with reasonable care, including maintaining a proper lookout and yielding before changing lanes. That driver breached that duty, and the breach dierctly caused the collision. Defendant, as the insurer of the at-fault driver, is liable for the resulting damages to the extent of its policy limits, and it has further breached its contractual and statutory duties under the Texas Insurance Code by unreasonably delaying and undervaluing Plaintiff's claim.

Damages

As a direct result of the collision, Plaintiff suffered a back strain that required medical evaluation and treatment, causing pain, muscle spasms, limited range of motion, and difficulty performing daily activities and work duties. Plaintiff has incurred medical expenses, lost time from employment, and continues to experience pain and discomfort. Plaintiff seeks recovery of all actual damages, pre- and post-judgment interest, corut costs, and attorney's fees as allowed by law, in a total amount of $81,000.00.